

to which the *cestui que trust* is entitled; *Thirdly*, The time within which the *cestui que trust* must apply to the Court.

Neither may the trustee receive a gift from the *cestui que trust*; *Wright v. Smith*, 23 N. J. Eq. 106; *Renew v. Butler*, 30 Ga. 954; *Smith v. Drake*, 23 N. J. Eq. 302; *Cadwalader's App.* 64 Pa. St. 293.

These principles are not to be received without some modification. If, on careful examination, it clearly and plainly appears that the transaction is favorable to the *cestui que trust*, that there is no fraud or concealment of material facts and that a strict investigation can discern no fault in the trustee in the management of the trust sale, the trustee may hold even though he purchases at his own sale; *Brown v. Cowell*, 116 Mass. 465; *Dunn v. Dunn*, 42 N. J. Eq. 431; *Pratt v. Thornton*, 28 Me. 355; *Lyon v. Lyon*, 8 Ired. Eq. 201; *Johnson v. Bennett*, 39 Barb. 237; *Jennison v. Hapgood*, 7 Pick. 1; *McCartney v. Calhoun*, 17 Ala. 301; *Rice v. Cleghorn*, 21 Ind. 80.

Such purchases by the trustee are not void, but voidable only; *Ives v. Ashley*, 97 Mass. 198; *Dodge v. Stevens*, 94 N. Y. 209; *Davoue v. Fanning*, 2 Johns. Ch. 252; *Torrey v. Bank of Orleans*, 9 Paige, 649; *Graves v. Waterman*, 63 N. Y. 657; *Mercer v. Newsom*, 23 Ga. 161; *Hoitt v. Webb*, 36 N. H. 158; *Van Epps v. Van Epps*, 9 Paige, 237.

To sustain such a sale the purchaser must show the straightforwardness of the transaction, the burden of proof resting on him; *M'Cants v. Bee*, 1 McCord's Ch. 383; 16 Am. Dec. 610; *Pairo v. Vickery*, 37 Md. 467; *Mackey v. Coates*, 70 Pa. St. 350; *Jamison v. Glascock*, 29 Mo. 191; *Robbins v. Butler*, 24 Ill. 387. The utmost good faith is required to sustain such a sale; *Juzan v. Toulmin*, 9 Ala. 662; 44 Am. Dec. 448; any profit obtained by trustee in purchasing accrues to the trust estate; *Brackenridge v. Holland*, 2 Blackford, 377; 20 Am. Dec. 123; if the *cestui que trust* objects, the trustee may not purchase; *Chorpening's App.* 32 Pa. St. 315; 72 Am. Dec. 789; a trustee should not purchase while a fiduciary relation exists; *Pratt v. Thornton*, 28 Me. 355; 48 Am. Dec. 492; *Wormley v. Wormley*, 8 Wheat. 421; he should first divest himself of his fiduciary character; *Murdock's Case*, 2 Bland's Ch. 461; 20 Am. Dec. 381. A purchase by a trustee can be questioned only by the *cestui que trust*; *Wilson v. Troup*, 2 Cow. 195; 14 Am. Dec. 458; *Larco v. Casaneuava*, 30 Cal. 560; *Thorp v. McCullum*, 1 Gilm. 614; *Davoue v. Fanning*, 2 Johns. Ch. 252; *Newcomb v. Brooks*, 16 W. Va. 32. An administrator is so far a trustee that he should not purchase at his own sale; *Martin v. Wyncoop*, 12 Ind. 266; 74 Am. Dec. 209; *Mulford v. Minch*, 3 Stock Ch. 16; *Murchison v. White*, 54 Tex. 85; *Boyd v. Blankman*, 29 Cal. 19; *Gardner v. Butler*, 30 N. J. Eq. 725; *Morgan v. Wattles*, 69 Ind. 263. A very slight advantage to the trustee, or showing of his bad faith, is sufficient for setting the sale aside; *Buell v. Buckingham*, 16 Ia. 284; 85 Am. Dec. 516; *Herbert v. Hanrick*, 16 Ala. 581; *Hannah v. Carrington*, 18 Ark. 85. A trustee may not acquire an outstanding title to trust property for his own benefit; *Morrison v. Caldwell*, 5 T. B. Mon. 426; 17 Am. Dec. 84; whether he be trustee, mortgagee, life tenant or purchaser otherwise; *Morgan v. Boone*, 4 T. B. Mon. 291; 16 Am. Dec. 153. If a trustee purchases a mortgage or a judgment at a discount he cannot claim the benefit; *Green v. Winter*, 1 Johns. Ch. 27; 7 Am. Dec. 475. An executor may not purchase for himself; *Bailey v. Robinsons*, 1 Gratt. 4; 42 Am. Dec. 540. That a person holding a fiduciary relation may not purchase does not apply to any particular class of persons, but it is of universal application; cases of pledgor and pledgee come